CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. EA52CCB01
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
RELEASE IN FULL

From: Vote, Robert <robert.vote@enron.com>
Sent: Mon, 22 Oct 2001 10:33:53 -0700 (PDT)
To: Derrick Jr., James <james.derrick@enron.com>
Cc: Cheek, Charles <charles.cheek@enron.com>, Williams, Robert C. <c..williams@enron.com>, Sanders, Richard B. <b..sanders@enron.com>
Subject: RE: CEO apex depositions

Jim,
In Chuck's absence I am attempting to find out more about the issues and deadlines in the referenced case to asses the usefulness of our company's participation.
Bob Vote

-----Original Message-----
From: Derrick Jr., James
Sent: Sunday, October 21, 2001 2:38 PM
To: Vote, Robert
Subject: FW: CEO apex depositions

Bob, I forwarded this to Chuck Cheek, Bob Williams, and Richard Sanders with the question of whether we should participate and if so who would write the brief. Chuck is out until Tuesday, so I a also forwarding the message to you.
Jim

-----Original Message-----
From: Fsmith008@aol.com@ENRON
Sent: Saturday, October 20, 2001 8:22 PM
To: peter.arbour@halliburton.com; tbattle@mitchellenergy.com; cbub@chevron.com; Derrick Jr., James; ted.m.frois@exxon.com; kerry.galvin@lyondell.com; david.garten@nli-usa.com; rick.a.harrington@usa.conoco.com; hughricekelly@reliantenergy.com; bob.kilpatrick@atofina.com; calamboley@shellus.com; lemmerw@coopercameron.com; lynchjl@bp.com; mcquemg@texaco.com; Rplaeger@br-inc.com; kera@dynegy.com; bobby.reeves@oceanenergy.com; wfschwind@marathonoil.com; dtomlin@bem.tmc.edu; Jvogel@coair.com; bobtwhilden@bmc.com; brittonw@epenergy.com; Fsmith008@aol.com
Subject: Fwd: CEO apex depositions

I am forwarding an E-mail from former Supreme Court Justice Raul Gonzalez which may be of interest to you. If so, his phone no. and those of his colleagues are contained in the E-mail.
Freeman E. Smith

Return-Path: <RGonzalez@lockeliddell.com>

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ENRON-238927466276

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Received: from rly-yb03.mx.aol.com (rly-yb03.mail.aol.com [172.18.146.3]) by air-yb01.mail.aol.com (v81.9) with ESMTP id MAILINYB17-1019190815; Fri, 19 Oct 2001 19:08:15 -0400
Received: from daex03.lockeliddell.com (mail.lockeliddell.com [204.0.73.15]) by rly-yb03.mail.aol.com (v81.9) with ESMTP id MAILRELAYINYB32-1019190806; Fri, 19 Oct 2001 19:08:06 2000
Received: by mail.lockeliddell.com with Internet Mail Service (5.5.2653.19) id <4SX5XV4P>; Fri, 19 Oct 2001 18:07:03 -0500
Message-ID: <4166C31A2813D411A54C00508B8BEA9ED25E77@auex02.lockeliddell.com>
From: "Gonzalez, Raul A." <RGonzalez@lockeliddell.com>
To: "'Fsmith008@aol.com'" <Fsmith008@aol.com>
Cc: "Castaneda, Kirsten M." <kcastaneda@lockeliddell.com>, "Powell, Gary R." <gpowell@lockeliddell.com>
Subject: CEO apex depositions
Date: Fri, 19 Oct 2001 18:10:53 -0500
MIME-Version: 1.0
X-Mailer: Internet Mail Service (5.5.2653.19)
Content-Type: multipart/alternative;
boundary="----_=_NextPart_001_01C158F3.4CBE1F30"

Freeman, we represent Jani-King. Their CEO was ordered to give a deposition in a case where he does not have unique or superior knowledge of discoverable information. Our attempts to get it quash or obtain relief from the court of appeals and the Supreme Court have been unsuccessful.
This issue is of importance to the jurisprudence of the state because more and more CEO's are being requested to give depositions and there is confusion in the law as to what an apex deponent is required to state in the affidavit in order to trigger the apex deposition doctrine. Must the affidavit state that he/she does not have ANY knowledge of relevant facts, rather than saying that he/she does not have any UNIQUE OR SUPERIOR knowledge of relevant facts as the Supreme Court said in Alcatel USA ?
At this point, our best chance in getting the court's attention is for the court to be flooded with amicus briefs requesting that the court take this case to resolve the conflict that exists among various courts of appeal. If the Supreme Court does not resolve the confusion that exist is the law at this time, litigants will continue to waste of time and money in fighting apex depositions.
Can you please forward this email to your membership to see if anyone is interested enough to file a quick amicus brief? If anyone is interested, they can contact me or Kirsten Castaneda (214-740-8533) or Gary Powell (214-740-8470) in our Dallas office.
Time is of the essence as the motion for rehearing is due next Friday.
If this is not the proper protocol, I would appreciate hearing from you.
Raul A. Gonzalez

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